

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date September 28, 2023

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 5 p.m. on Wednesday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department W15 generally conducts non-evidentiary proceedings, including law and motion, *remotely, by Zoom videoconference*: (1) All counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html>. (2) Participants will then be prompted to join the courtroom's Zoom hearing session. (3) The calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Guidelines for Remote Appearances" posted online. In compliance with Local Rule 375, parties preferring to be heard in-person, instead of remotely, **shall** provide *notice of in-person appearance* to the court and all other parties five (5) days in advance of the hearing. (See the appropriate Local Form available at <https://www.occourts.org/forms/formslocal.html>).

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50	Trinity Equipment, Inc. vs. Corbel Communication	<i>Off-calendar.</i>

	Industries of California, Inc. Case No. 30-2022-01238888	
53	Liu vs. Le Case No. 30-2023-01319093	Specially Appearing Defendant Lucy Pham Le ("Ms. Le") moves for an order quashing service of summons and complaint on the grounds that she was not properly served. Subsequent to the filing of the motion, Ms. Le was apparently personally served in a manner she deemed satisfactory. (ROA 21). On 6/20/23, Ms. Le made filed an answer and cross-complaint (ROAs 27-28.) CCP §418.10(e)(1) provides that "[n]otwithstanding Section 1014, no act by a party who makes a motion [to quash service or stay or dismiss action] under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section. If the court denies the motion made under this section, the defendant or cross-defendant is not deemed to have generally appeared until entry of the order denying the motion." Although the filing of her answer and cross-complaint do not yet constitute a general appearance—due to the fact that Ms. Le filed the instant motion—the only relief sought by way of this motion is for an order that Plaintiff serve Ms. Le correctly. (Mtn. at 11:1-5.) As Ms. Le has already received the relief sought, the motion is DENIED as MOOT. <i>Plaintiff to give notice.</i>
54	Shin vs. An Case No. 30-2023-01328986	Defendant Kenneth H. An ("Defendant") moves to quash service of summons on the grounds that Plaintiff Keum Sook Shin's ("Plaintiff") purported service on him by mail on July 21, 2023 was not made according to any of the statutorily authorized methods. Section 418.10(a)(1) authorizes a defendant to file and serve a notice of motion to quash service of summons on the ground of lack of jurisdiction. When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.)

		A proof of service filed by Plaintiff on July 24, 2023 indicates that service of summons was purportedly made on Defendant by mail and acknowledgment of receipt of service, with the package being directed at Defendant's counsel. (ROA 25.) This section of the service of summons form relates to Code of Civil Procedure section 415.30, which allows for service of summons by mail when the summons is accompanied by a notice and acknowledgment of receipt and return envelope with postage prepaid. (Code Civ. Proc., § 415.30(a).) Plaintiff's proof of service does not indicate that copies of the notice and acknowledgment of receipt or envelope with prepaid postage were included in the mailed documents, as required. (ROA 25.) Further, though a summons may be served by substituted service, such service must be done at a person's office or usual mailing address and copies must be left with a person at least 18 years of age and/or with a person who is apparently in charge. (Code Civ. Proc., § 415.20(a).) Substituted service may only be made when the summons cannot with reasonable diligence be personally delivered to the person to be served. (Id. § 415.20(b).) Here, the proof of service indicates that service was purportedly made by mail only, making it inadequate for proper substituted service. Further, service on counsel would not constitute proper substituted service, as it would not be made at Defendant's office or usual place of mailing. Without proper service of summons, the Court lacks jurisdiction over Defendant. (<i>Kremerman v. White</i> (2021) 71 Cal.App.5th 358, 371 ["[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction."].) In light of the above, Defendant's unopposed Motion to Quash is GRANTED. <i>Defendant to give notice.</i> Parties should be prepared to go forward with the case management conference.
55	Honarkar vs. The Picerne Group, Inc. Case No. 30-2021-01208258	<i>Off-calendar.</i>

56	Felix vs. Melchor Case No. 30-2021-01222406	Plaintiff moves for a separate judgment against Defendant Pedro Ramirez Melchor It appears from the file that Plaintiff initially attempted to file a default judgment packet and a Request for Dismissal. However, the Clerk's office rejected the documents on 1/17/23 (ROA 51), with the following comments: "All Defendants not named on the Judgment, must be dismissed or disposed of. If seeking a separate Judgment, an Application for Separate Judgment pursuant to CCP 579 is required under CA Rule of Court 3.1800(a)(7)." Plaintiff then filed the Motion for Separate Judgment. It is unclear whether Plaintiff is attempting to dismiss Defendant Jarely Melchor, who responded to the Complaint or whether it is appropriate to continue the instant motion until after the trial in this matter. The case currently has a default prove-up hearing set for 11/16/2023 at 1:30 p.m. The motion is continued until 11/16/2023 at 1:30 p.m. <i>Moving party to give notice.</i>
57	National Funding, Inc. vs. XPT Logistics, Inc. Case No. 30-2023-01329408	<i>Off-calendar as moot.</i>
58	Bray vs. Fox Rent A Car, Inc. Case No. 30-2023-01301322	Defendant Fox Rent a Car Inc. ("Defendant") filed a Motion to Compel Arbitration. The Motion is DENIED pursuant to 9 U.S.C. § 402(a). 9 U.S.C. § 402 states: "(a) In general.--Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute. (b) Determination of applicability.--An issue as to whether this chapter applies with respect to a dispute shall be determined under Federal law. The applicability of this chapter to an agreement to arbitrate and the validity and enforceability of

		an agreement to which this chapter applies shall be determined by a court, rather than an arbitrator, irrespective of whether the party resisting arbitration challenges the arbitration agreement specifically or in conjunction with other terms of the contract containing such agreement, and irrespective of whether the agreement purports to delegate such determinations to an arbitrator.” (9 U.S.C.A. § 402.) The court agrees with Plaintiff. The plain language of 9 U.S.C. § 402 expressly states that “no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C.A. § 402, subd. (a).) Each of Plaintiff’s six causes of action relate to the sexual harassment Plaintiff claims she has and continues to experience during her employment with Defendant. Defendant points to other trial court cases wherein some causes of action were sent to arbitration while the sexual harassment claims were stayed. This case is different than those cited by Defendant in that Plaintiff’s claims are based solely on sexual harassment. Plaintiff does not allege any wrongful conduct based on any other protected characteristics or activities under FEHA, such as disability or race. Plaintiff’s allegations are limited to those relating to the sexual harassment dispute and fall squarely within the protection of 9 U.S.C. § 402. Accordingly, the Motion to Compel Arbitration is DENIED. Plaintiff’s request for sanctions is DENIED. Defendant to file an answer or responsive pleading within 10 days. The case management conference is continued to 10/26/2023 at 1:30 p.m. <i>Plaintiff to give notice.</i>
59	Ruiz vs. Nissan North America, Inc. Case No. 30-2022-01266638	Plaintiff Jesus Ruiz (“Plaintiff”) petitions the court pursuant to Code of Civil Procedure section 1281.2 and 1281.6 for an order to compel Defendant Nissan North America, Inc.

		("Defendant") to arbitrate in an arbitration forum other than AAA or with one of the six arbitrators offered by Plaintiff. Code of Civil Procedure section 1281.2 states: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2.) Pursuant to Code of Civil Procedure section 1281.6: "If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator. When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees." (Code Civ. Proc., § 1281.6.) The parties agree that the Arbitration Provision contains the following language:
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		"Any claim or dispute is to be arbitrated by a single arbitrator on an individual basis and not as a class action. You expressly waive any right you may have to arbitrate a class action. You may choose the American Arbitration Association, 1633 Broadway, 10th Floor, New York, New York 10019 (www.adr.org), or any other organization to conduct the arbitration subject to our approval." The parties disagree regarding how this paragraph should be interpreted. Plaintiff argues that the Provision gives Plaintiff two options: (1) arbitrate with AAA or (2) arbitrate with any other organization subject to Defendant's approval. Defendant argues that arbitration must take place with AAA unless it approves another forum. The court agrees with Plaintiff. Defendant's argument that arbitration must take place with AAA unless Defendant chooses otherwise ignores the plain language of the agreed upon Arbitration Provision. The word "unless" is not contained in the paragraph above. Likewise, the provision does not state that arbitration "must" take place with AAA. (Mijares v. Orange County Employees' Retirement System (2019) 32 Cal.App.5th 316, 329 [""Courts routinely construe the word 'may' as permissive and words like 'shall' or 'must' as mandatory."].) Rather the paragraph above states that Plaintiff may choose (1) the American Arbitration Association, 1633 Broadway, 10th Floor, New York, New York 10019 (www.adr.org), or (2) any other organization to conduct the arbitration subject to our approval." Under the express language of the Arbitration Provision, Plaintiff is given two choices. Here, Plaintiff seeks to exercise option 2 and therefore THE COURT ORDERS THAT Defendant and Plaintiff must agree upon "any other organization to conduct the arbitration." If the parties are unable to agree upon "any other organization to conduct the arbitration," the court will appoint an arbitrator pursuant to the procedures set forth in Code of Civil Procedure section 1281.6. If the parties are unable to agree upon an arbitrator, the parties are ordered to submit a joint statement no later than 20 days containing a list of proposed arbitrators and the court will
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		"nominate five persons from lists of persons supplied jointly by the parties to the arbitration" pursuant to Code of Civil Procedure section 1281.6. Plaintiff's request for judicial notice is DENIED as the court declines to consider all new points, arguments, and evidence presented for the first time on reply. (<i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010; <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) The ADR Review Hearing is continue to 10/26/2023 at 1:30 p.m. Plaintiff to give notice.
60	Hale vs. Hyundai Motor America Case No. 30-2020-01129492	Plaintiff MARCIA G. HALE ("Plaintiff") will, and hereby does, move for an Order for: (1) payment by Hyundai of \$5,000 in previously-ordered, accrued sanctions within ten (10) calendar days of the Court's entry of its order granting this Motion: and (2) (a) terminating sanctions, specifically, striking Hyundai's Answer filed in this action or entering default judgment entered against Hyundai and in favor of Plaintiff in an amount to be proved at a default prove-up hearing; or, in the alternative (b) a fourth order compelling Hyundai to comply with the Court's March 18, 2021, April 22, 2022, and April 6, 2023 Orders and for prospective sanctions of \$1000 per day for each day that Hyundai does not comply. Plaintiff brings this Motion is made pursuant to California Code of Civil Procedure Sections 128(a)(4) and 2023.030(d)(1) & (4). Code Civ. Proc. §128(a)(4) provides, "Every court shall have the power to... compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein." [CCP §128(a)(4).] Code Civ. Proc. §2023.030(d)(1) provides, "The court may impose a terminating sanction by... An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process." [CCP §2023.030(d)(1).] Code Civ. Proc. §2023.030(d)(4) provides, "The court may impose a terminating sanction by... An

		order rendering a judgment by default against that party.” [CCP §2023.030(d)(4).] <i>History of the Discovery Dispute Herein</i> On March 13, 2020, Plaintiff served Requests for Production of Documents, Set One (“RFPs”) on Defendant. Plaintiff re-served the RFPs on April 30, 2020, with a corrected proof of service. [Decl. of Dolin¶4.] On May 13, 2020, Defendant served responses to Plaintiff’s RFPs. [Id.¶5.] On September 21, 2020, Plaintiff filed a Motion to Compel Further Responses to Plaintiff’s Request for Documents, Set One. [Id.¶6.] As to the RFPs relevant to this motion the Court ruled as follows on March 18, 2021: RFP No. 8: “The Warranty Policy and Procedure Manual published by YOU and provided to YOUR authorized repair facility(s), within the state of California, from 2012 to the present. [This request will be understood to include production of any and all versions of such manual as distributed to YOUR dealerships during the relevant time frame].” HMA objected claiming it was vague, ambiguous, unintelligible, overly broad, unduly burdensome, and oppressive especially since plaintiff’s warranty visits began in 2016. HMA also claimed attorney-client, work product, and/or consulting expert privileges. HMA further claimed the right to privacy, including trade secret and confidential information. Finally, it claimed the request sought irrelevant information. Plaintiff is alleging breach of warranty and failure to repair under the Song-Beverly Act. Therefore, the documents sought are relevant. The motion to compel a further response to this request is GRANTED. The court orders HMA to further respond and produce any Warranty Policy and Procedure Manual it provided to authorized repair facilities within the state of California from 2015 to present. The response must state (1) whether documents are being produced pursuant to the request, (2) if no document is being produced, a reason for the inability to comply pursuant to CCP §2031.230, (3) whether any documents are being withheld pursuant to a privilege, and if so, to provide a privilege log, and (4) the specific documents responsive to the request....
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	RFP NO. 68: "DOCUMENTS, including electronically stored information and electronic mails, regarding any communications between YOU and any government agency or entity (e.g. National Highway Traffic Safety Administration ("NHTSA")) regarding ENGINE DEFECT(S) in HYUNDAI VEHICLES." HMA claims it would provide all Technical Service Bulletins, which would show whether HMA had knowledge of the defects. However, the NHTSA or agency documents would also be relevant and reasonably calculated to lead to the discovery of admissible evidence. Therefore, the court orders HMA to provide a further response to this request. The response must state (1) whether documents are being produced pursuant to the request, (2) if no document is being produced, a reason for the inability to comply pursuant to CCP §2031.230, (3) whether any documents are being withheld pursuant to a privilege, and if so, to provide a privilege log, and (4) the specific documents responsive to the request. Modified #68: court orders HMA to provide a further response to 1.8 liter NU engine in the 2011 Elantra vehicle to just California. The motion to compel a further response to this request is GRANTED as modified. Notably, the Court did not award sanctions. Also significant, the Court proceeded to rule on this motion despite the parties failing to file a joint separate statement as ordered. [ROA 90.] The Court ordered Defendant to give notice, but it failed to do so. [ROA 90, and Decl. of Dolin¶8.] Defendant failed to comply with the March 18, 2021 Order, so on December 20, 2021, Plaintiff filed a Motion to Compel Compliance with the March 18, 2021 Discovery Order and for Prospective Sanctions of \$250 Per Day for each day that Defendant did not comply with the order. [Id¶10.] Plaintiff's motion was not heard until April 28, 2022. In ruling on the motion this Court noted, "Defendant does not dispute that it failed to provide further responses. Rather, it claims that due to multiple transfers of the case between handling attorneys within defense counsel's firm, the order 'was lost in the shuffle' (Alividao
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	Decl., ¶ 5.) Defendant states that it will comply with the order and provide further responses and will apprise the court prior to the hearing regarding such compliance. It also argues that there was no deadline for providing the responses and that there is a motion to compel arbitration pending.” [ROA 166.] As such, the Court granted the motion and ordered Defendant to provide further responses within 20 days in compliance with the 3/18/21 minute order. The Court did not award sanctions. [ROA 166.] Incredibly, at this point it had been almost two (2) years since Plaintiff first propounded the discovery at issue. Ultimately, Hyundai failed to provide supplemental responses, the Court-ordered verified, supplemental responses without objections, a privilege log, or corresponding supplemental document production. [Decl. of Dolin ¶13.] As such, on March 6, 2023, Plaintiff filed a Motion for (1) Issue and/or Evidentiary Sanctions; Or, in the Alternative (2) A Second Order Compelling Compliance with the Court’s March 18, 2021 Discovery Order and Prospective Sanctions of \$500 Per Day. [Id ¶14.] The hearing for this motion was set for April 6, 2023. Despite the harsh nature of the requested relief, Defendant filed an untimely opposition and provided no oral argument. Plaintiff submitted on the tentative ruling. [ROA 282.] On April 6, 2023, this Court ruled, in part, as follows: “In Defendant’s untimely opposition, it admits its failure to comply, but explains, “HMA has continued to suffer from staffing issues throughout 2022 that have partly contributed to delays, which was also followed by Defense Counsel going out on paternity leave beginning in October 2022 until near the end of the year. (Aliviado Decl. ¶ 3-4.)” (Opp. page 3:13-16.) “Notably, Plaintiff has been seeking the documents herein for three (3) years, having first served the RFPs on 3/13/2020. Interestingly,
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	although Attorney Aliviado provides a declaration indicating, "HMA has continued to encounter staffing shortages throughout 2022...." (Decl. of Aliviado¶3), no one from HMA submitted a declaration verifying any shortages at HMA. Furthermore, shortages in 2022 do not excuse failing to respond to discovery first sought in 2020, especially considering it is now 2023. "As to paternity leave, Mr. Aliviado declares, "In October 2022, I went out on paternity leave that lasted through the better part of the end of the year." (Decl. of Aliviado¶4.) Yet, by October 2022, this Court had already twice ordered compliance on 3/18/2021 and 4/28/2022. Furthermore, the opposition, filed late on 3/28/2023, establishes that despite Mr. Aliviado's return to work for at least three months, Defendant has still not complied with the Court's orders. That is, it is "hopeful that the outstanding discovery will be produced to Plaintiff by the time of the hearing on Plaintiff's Motion." (Opp. page 3:12-13.) "Additionally, there is no showing by Mr. Aliviado that no other attorney in the Theta Law Firm was unable to represent Defendant during Mr. Aliviado's paternity leave. Indeed, the Court notes that Attorney Soheyl Tahsildoost's name appears on the Opposition as well. "Finally, although not mentioned in the papers, the Court recalls that Defendant filed a Motion for Summary Adjudication in October 2022 which was recently heard on 3/16/2023. (ROA 274.) Due to Defendant's procedural errors and Plaintiff's CCP §437c(h) request (based on the need to obtain the discovery at issue herein), the Court denied that motion without prejudice. Thus, Defendant's failure to comply with this Court's discovery orders is delaying the case. "All in all, the Court finds the Defendant's excuses herein lack merit; and as such, the continuing failure to comply with the Court's prior orders is willful. "Because the Court has not imposed lesser sanctions first, it denies evidentiary and issue sanctions at this time. Therefore, the motion seeking issue or evidentiary sanctions is DENIED. "Nevertheless, the Court will impose sanctions in the amount of \$500 dollars each day that
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	Defendant does not comply with the Orders. [Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 605.] Thus, Plaintiff's request that a "Second Order Compelling immediate compliance with the Discovery Order within 10 calendar days and ordering prospective sanctions of \$500 per day for each day following those 10 calendar days that Defendant does not fully comply with the order" is GRANTED. The maximum amount of sanctions under this order shall be \$5,000." [Id.] Plaintiff provided Notice of the Court's Ruling by email on April 6, 2023. [Id. ¶15, Ex. 6.] Thereafter, Defendant rolled out its "compliance." On April 19, 2023, Hyundai served Further Responses, a Privilege Log with a single entry for "Redactions in NHTSA Documents", and production of Bates stamped 171-386 (Warranty Policy and Procedures) and 387-47,351 (NHTSA Documents). [Id. ¶¶16-18.] Thereafter, on April 24, 2023, Hyundai produced documents Bates Stamped 47,352-77,320 (NHTSA Documents) ("Defendant Hyundai Motor America's Third Production of Documents (Per Court Order)"). [Id. ¶19.] Critically, the April 24th production was untimely, which appears to be why Defendant paid \$5000 in sanctions on September 15, 2023. [Decl. of Aliviado ¶32.] Plaintiff's Counsel again deemed the attempted compliance to be deficient and on August 25, 2023, sent Defendant's counsel a meet and confer. [Id. ¶27, Ex. 14.] On the same date, Plaintiff filed the herein motion. [ROA 320.] There is no indication Defendant ever responded to the meet and confer. [Decl. of Aliviado, generally.] Once again, Defendant filed its opposition to the motion late, on September 18, 2023, which is untimely. The Opposition should have been filed by September 14, 2023. Defendant then filed an ex parte seeking to have its belated opposition considered. The Court denied the ex parte on the ground that it had been filed, albeit belatedly. <i>Has Defendant complied with this Court's Orders?</i>
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	As to RFP 8, Plaintiff argues that instead of producing all of the ordered Warranty Policy and Procedure Manuals (2015-present), Hyundai instead cherry-picked excerpts of the manuals from Sections 4.0-4.8, rather than produce the complete manuals (documents Bates stamped 171-386) and excluded the 2020, 2022, and 2023 manuals. Plaintiff argues that cover pages, tables of contents, and indexes, were omitted. Defendant argues it produced “the section of a larger manual directly applicable to the warranty and how the warranty is applied by dealerships to customer vehicles, which is directly on point with how ‘warranty policies and procedures’ could potentially be used in this case. Specifically, HMA has produced Section 4.” [Opp. page 11:11-14.] However, this Court did not order Defendant to produce portions of the manual or specific sections. Rather, this Court ordered Defendant to produce any Warranty Policy and Procedure Manual it provided to authorized repair facilities within the state of California from 2015 to present. Therefore, Defendant’s production does not appear to comply with the Court’s order. Also, as to the missing manuals from 2020, 2022, and 2023, Defendant is correct that the Court’s minute order was from 2021; and therefore, only manuals from 2015-2021 were required. However, as to the 2020 manual, counsel declares, “There were no updates to the manual in 2020.” [Decl. of Aliviado ¶31.] However, it is unclear how counsel has personal knowledge of this fact. As such, it does not appear Defendant complied with the Court’s order. As to RFP 68, Plaintiff makes two arguments. First, Plaintiff argues that Defendant has not produced all documents relevant to this RFP as allegedly evidenced by documents obtained elsewhere. Second, Plaintiff argues that Defendant impermissibly redacted the documents it did produce. It appears through the Court’s modification of the March 18, 2021 tentative ruling that, relating to RFP No. 68, it ordered Defendant to provide
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	documents regarding any communications between Defendant and any government agency or entity (e.g. National Highway Traffic Safety Administration ("NHTSA")) regarding engine defects in the 2011 Hyundai Elantra with a 1.8 liter NU engine, in California. As to documents produced elsewhere which Plaintiff claims Defendant did not produce herein, Plaintiff argues Hyundai has not produced the April 12, 2019 or May 23, 2019 letters from NHTSA to Hyundai, Hyundai's responses to these letters to NHTSA, or the documents Hyundai agreed to produce to NHTSA as memorialized in the May 23, 2019 letter from NHTSA. [Decl. of Dolin¶22.] Attorney Dolin is actually in possession of the two letters from NHTSA to Hyundai (received from another source), which are attached as Exs. 11 and 12 to her declaration. The April 12, 2019 letter refers to: • Subject vehicles: All MY 2011-2014 Hyundai Sonata and MY 2011-2014 Hyundai Santa Fe, and all other Hyundai vehicles equipped with Theta II, Lambda II, Gamma and Nu engines, manufactured for sale or lease in the United States, including, but not limited to, the District of Columbia, and current U.S. territories and possessions. Therefore, as this letter relates to communications between NHTSA and Defendant relating to 2011 Nu engines, it appears it should have been produced. [Decl. of Dolin, Ex. 12.] The May 23, 2019 letter also relates to Nu engines, and as such, should have been produced. Likely, too, the responses to these letters should have been produced. However, the actual production of documents to which these letters relate does not appear necessary as they would not qualify as a "communication." Further, the redactions as to almost the entirety of Hyundai's 76,933 pages of documents produced of NHTSA documents (Bates stamped 387 through 77320), appears improper and not in compliance with this Court's order. Defendant contends that the privilege log was provided to explain the redactions and, "HMA does
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	not need to assert a privilege as to the redacted information because the information is not relevant and not reasonably calculated to lead to the discovery of admissible evidence, and further is not responsive to Plaintiff's request or the Court's order." [Opp. page 10:14-17.] However, there are two problems with this argument. First, the Court ordered Defendant to state whether any documents are being withheld pursuant to a privilege, and if so, to provide a privilege log. That is, the privilege log was for the purpose of providing information as to documents withheld based on a privilege, not redactions. Second, Defendant responded it would provide documents subject to the protective order. However, Defendant fails to cite to any portion of the protective order that allows for redactions. Defendant suggests that the redacted information is irrelevant; however, given the protective order in place, not only are the redactions unnecessary, but breed suspicion. At this point the Court is unwilling to allow Defendant to electively excise from otherwise discoverable documents those portions that it deems not to be relevant. All in all, as set forth above, Defendant has engaged in a pattern of filing untimely oppositions, providing invalid excuses, and failing to timely comply with the discovery statutes and this Court's orders. As mentioned in prior orders, this has caused delay in this case. Defendant appears to have a lackadaisical attitude towards the case and the motions in general, surmising that the case is simply one of many Lemon Law cases filed by Plaintiff, of which the discovery at issue does not advance the case. However, that attitude does not obviate the need to comply with the discovery statutes or this Court's orders. Defendant's attitude and unwillingness to comply has only increased work for Plaintiff's counsel, this Court, and its staff. Also, it is clear that lesser sanctions in the form of prospective, daily monetary sanctions in the amount of \$500 a day, do not compel compliance.
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		At this point, the Court would be inclined to grant issue or evidentiary sanctions; however, Plaintiff did not request that type of relief. As such, the Court orders Defendant to fully comply with its March 18, 2021, April 22, 2022, and April 6, 2023 Orders no later than 5 court days. The Court also orders prospective sanctions of \$5,000.00 per day for each day that Hyundai does not comply after the expiration of the 5 court days if the Court's orders have not been followed. To be clear, as to RFP No. 8, Defendant is to produce the full, entire manuals for 2015-2021. As to RFP No. 68, Defendant to produce all documents without redactions, including the April 12, 2019 and May 23, 2019 letters from NHTSA to Defendant, and Defendant's responsive letters to NHTSA. Following the fifth Court day, Defendant is ordered to pay Plaintiff \$5,000 a day until it has complied with the above. Evidentiary Objections (ROA 366) 1. Overrule 2. Overrule 3. Overrule 4. Overrule 5. Overrule 6. Overrule <i>Plaintiff to give notice.</i>
61	Le vs. Moreno Case No. 30-2022-01272246	Defendant Victor Le ("Defendant") moves to compel Plaintiff Selene Felixmoreno ("Plaintiff") to serve responses to Defendant's Special Interrogatories, Set Two on the ground that Plaintiff failed to timely respond. Defendant served his second set of special interrogatories on February 24, 2023 and responses were due on March 31, 2023. (Declaration of Scott Meininger, ¶ 2.) No extensions were requested and Plaintiff has failed to serve any responses or respond to Defendant's meet and confer efforts. (Id. ¶¶ 3-4.) Because Plaintiff has failed to serve timely responses, Defendant's Motion to Compel is GRANTED. (Code Civ. Proc., § 2030.290(a)-(b).) The Court finds that there is no substantial justification for Plaintiff's failure to respond and sanctions are warranted. (Code Civ. Proc., § 2030.290(c).) Thus, the Court GRANTS

		Defendant's request for \$432.00 in monetary sanctions against Plaintiff and her counsel of record, O. Hovik Oganessian of Ness Law, Inc. Sanctions are to be paid within 20 days. <i>Defendant to give notice.</i>
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